

CHAPTER 38.

An Act to remove certain limitations on the borrowing by a County Council by way of mortgage under the Local Government Act, 1888. [25th November 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. The words "if special reasons exist for so borrowing" in subsection (8) and subsection (9) of section sixty-nine of the Local Government Act, 1888 (which limits the period for which a county council may borrow by way of mortgage to a period not exceeding five years), are hereby repealed, and that subsection shall, as respects any money borrowed by way of mortgage before the passing of this Act, be deemed not to have been in force.

Removal of limitations on the borrowing by a county council by way of mortgage. 51 & 52 Vict. c. 41.

2. This Act may be cited as the County Councils Mortgages Act, 1909.

Short title.

CHAPTER 39.

An Act to amend the Law as to Oaths.

[25th November 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. This Act may be cited for all purposes as the Oaths Act, 1909; and the Oaths Act, 1888, and this Act may be cited together as the Oaths Acts, 1888 and 1909.

Short title. 51 & 52 Vict. c. 46.

2.—(1) Any oath may be administered and taken in the form and manner following :—

Manner of administration of oaths.

The person taking the oath shall hold the New Testament, or, in the case of a Jew, the Old Testament, in his uplifted hand, and shall say or repeat after the officer administering the oath the words "I swear by Almighty God that", followed by the words of the oath prescribed by law.

(2) The officer shall (unless the person about to take the oath voluntarily objects thereto, or is physically incapable of so taking the oath) administer the oath in the form and manner aforesaid without question :

Provided that, in the case of a person who is neither a Christian nor a Jew, the oath shall be administered in any manner which is now lawful.

Definition.

3. In this Act the word "officer" shall mean and include any and every person duly authorised to administer oaths.

Commence-
ment and
extent.

4.—(1) This Act shall come into operation on the first day of January nineteen hundred and ten.

(2) This Act shall not apply to Scotland.

CHAPTER 40.

An Act to amend the Metropolitan Police Acts, 1829 to 1899, and to make better provision for the widows and children of constables who lose their lives in the execution of their duty. [25th November 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Annual con-
tribution
towards ex-
penses of
metropolitan
police.
62 & 63 Vict.
c. 26.

1. In addition to the sums payable out of moneys provided by Parliament for specified services of the metropolitan police, and as salaries under the Metropolitan Police Act, 1899, there shall be paid in each year out of moneys provided by Parliament in respect of services rendered by the metropolitan police for imperial and national purposes such sum as the Secretary of State, with the approval of the Treasury, may determine.

Provision as
to additional
rate levied
under 53 & 54
Vict. c. 45.
s. 19 (4) in
metropolitan
district.
51 & 52 Vict.
c. 41.

2. The proceeds of any addition to the metropolitan police rate levied under the provisions of subsection four of section nineteen of the Police Act, 1890, shall not be reckoned as part of the sum actually raised by rates for the purposes of paragraph (k) of subsection two of section twenty-four of the Local Government Act, 1888, which regulates the amount to be paid by county councils to the receiver for the metropolitan police district and charged to the Exchequer Contribution Accounts.

Additional
Assistant Com-
missioner of
metropolitan
police.
19 & 20 Vict.
c. 2.

3. It shall be lawful for His Majesty to appoint a fit person to be a fourth Assistant Commissioner of Police of the Metropolis, and the Metropolitan Police Act, 1856, shall apply in like manner as if four Assistant Commissioners of Police of the Metropolis were therein mentioned instead of two.

Regulations by
Secretary of
State as to
superannu-
ation for offi-
cers of staff of
metropolitan
police.
38 & 39 Vict.
c. 28.

4.—(1) The power of the Secretary of State under the Metropolitan Police Staff (Superannuation) Act, 1875, to make regulations respecting the grant to the officers to whom that Act applies of superannuation allowances, compensations, gratuities, or other allowances, on the like principles and conditions as were in force at the passing of that Act with respect to persons in the permanent civil service of the State, shall be extended so as to include a power to make such regulations on the like